

25STCV02720 25STCV02720

County: los-angeles

Division: Civil Law and Motion

Department: 414

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Case Number: 25STCV02720 Hearing Date: August 13, 2026 Dept: 414

25STCV02720

Raul Sanchez v. Fleurametz USA LLC

Thursday,

August 13, 2026

[TENTATIVE] ORDER DENYING PLAINTIFF'S MOTION TO STRIKE DEFENDANT'S
UNTIMELY OPPOSITION TO PLAINTIFF'S MOTION FOR SUMMARY ADJUDICATION AND ALL
SUPPORTING PAPERS (7759)

The

first amended complaint alleges that Plaintiff worked for Defendant from January 2024 until he was fired on November 15, 2024. Plaintiff alleges he was misclassified as salaried and exempt. Defendant allegedly paid Plaintiff an annual salary of \$48,000 which failed to meet the salary threshold to classify Plaintiff as exempt. Plaintiff alleges seven causes of action for Labor Code violations, a whistleblower claim, wrongful termination in violation of public policy, unfair competition, and a PAGA claim.

On

June 9, 2026, after taking the matter under submission, the Court granted Plaintiff's motion for summary adjudication (MSA) of whether Defendant owed Plaintiff a duty with respect to the first, third, fourth, fifth and 11th causes of action. This motion address Defendant's late opposition to the MSA.

In

ruling on Plaintiff's MSA, the Court considered the same arguments Plaintiff makes in this motion to strike the late opposition. The Court considered the untimely

opposition to the MSA after considering defense counsel's declaration describing the scheduling error. The Court determined Plaintiff did not suffer any prejudice, and all papers were considered, including this motion. (M.O. 6.2.26.)

The matter remains on calendar. Therefore, the Court denies the motion to strike for the same reasons expressed in its June 9, 2026, ruling.